

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
AHMED MOBARAK,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
SAMANTHA STURMAN, Shield No. 3035, and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,Defendants.
----- X**SUMMONS**

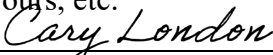
Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**To the above-named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 22, 2023

Yours, etc.



Cary London, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE SAMANTHA STURMAN, Shield No. 3035, 84th Precinct; 301
Gold Street, Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
AHMED MOBARAK,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
SAMANTHA STURMAN, Shield No. 3035, and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff, AHMED MOBARAK, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 18, 2012, at approximately between 3:00 p.m. and 6:00 p.m., Plaintiff Ahmed Mobarak, while lawfully in the vicinity of 157 East 18th Street, County of Kings, New York, was subject to an unlawful arrest, detention, and excessive use of force by defendant Police Officers. In addition, Plaintiff was subjected to unlawful confinement at an NYPD Precinct, Kings County Central Bookings, and Rikers Island Correctional Facility. All charges against the Plaintiff were dismissed on or around September 7, 2022, when the King's County District Attorney's Office vacated his conviction after an investigation into police misconduct and false criminal charges made by defendant officers. Plaintiff was deprived of his rights under the laws of the State of New York and his constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Ahmed Mobarak is a resident of the state of New York.

3. NYPD Detective Samantha Sturman, Shield No. 3035, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. NYPD Detective Samantha Sturman, Shield No. 3035, is being sued in her individual and official capacity.

5. Upon information and belief, NYPD Detective Samantha Sturman, Shield No. 3035, was at all times relevant herein assigned to the NYPD 70th Precinct.

6. NYPD Police Officers John Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. NYPD Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

11. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on April 24, 2023.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On October 18, 2012, at approximately between 3:00 p.m. and 6:00 p.m., Plaintiff was lawfully present in the vicinity of 157 East 18th Street, County of Kings, New York, when the defendant Police Officers unlawfully arrested Plaintiff without probable cause or legal justification.

16. At the time of the relevant incident, Plaintiff was employed at a Deli located at 157 East 18th Street, County of Kings, State of New York.

17. On the aforementioned afternoon, the Plaintiff had been upstairs speaking with his boss.

18. When the Plaintiff left his boss's apartment to walk back to his nearby home, he observed Detective Samantha Sturman and several defendant police officers standing outside the Deli.

19. Detective Samantha Sturman and other several defendant officers then approached Plaintiff, absent probable cause or reasonable suspicion that Plaintiff was involved in any criminal activity, grabbed Plaintiff and began unlawfully searching Plaintiff.

20. Defendant officers, absent legal justification, pinned Plaintiff's arms behind his back, and put metal handcuffs on his wrist.

21. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

22. At no point did Defendant Officers recover any weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

23. Plaintiff did not resist arrest.

24. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by the defendant officers without legal justification or probable cause.

25. While standing in handcuffs, the Plaintiff was approached by a second defendant officer who claimed that the first defendant officer had not searched Plaintiff thoroughly enough.

26. Plaintiff was then subjected to a second unlawful pat-down search, during which the defendant officers dropped a firearm on the ground and claimed it belonged to the Plaintiff; Plaintiff vehemently denied any knowledge or possession of any firearm.

27. Thereafter, the Plaintiff was placed in the back of an NYPD vehicle and transported against his will to a nearby NYPD Precinct, upon information and belief the 70th Precinct, where he was unlawfully fingerprinted, photographed, and placed in a holding cell.

28. At the precinct, the Plaintiff was questioned further about the firearm, but he maintained that he had no knowledge of the weapon.

29. While Plaintiff was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiff committed a crime.

30. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff was engaged in criminal possession of a weapon in the second degree, criminal possession of marihuana in the fifth degree, unlawful possession of marihuana in the second degree and criminal possession of a weapon in the fourth degree.

31. Thereafter, the Plaintiff was arraigned in criminal court, charged with crimes he did not commit, his bail was set, and he was remanded to Rikers Island Correctional Facility, where he remained for approximately forty-eight (48) hours until he was released on bail.

32. The Plaintiff was represented by Brooklyn Defender Services as he could not afford private representation; the Plaintiff communicated with his attorney that he was innocent.

33. Plaintiff faced 15 years in jail on the gun charge.

34. After his indictment for the alleged crimes, the Plaintiff was offered a plea deal during trial for a lesser charge in exchange for one year of incarceration at Rikers.

35. Plaintiff was advised by his public defender to take the plea, and was specifically told that, "No one was going to believe your word over the word of a New York City Detective." Plaintiff could not afford to hire a private criminal defense lawyer for a second opinion.

36. Plaintiff plead guilty, based on his public defender's advice, even though he was innocent, to avoid fifteen years in prison.

37. Upon taking the plea deal, the Plaintiff was remanded to Rikers Island Correctional Facility where he remained until his release on or about May of 2013.

38. Plaintiff spent approximately eight months on Rikers Island, out of the one-year sentence, due to credit for good time behavior while incarcerated.

39. In the summer of 2022, the Kings County District Attorney's Office's Conviction Integrity Review Unit (CRU) re-investigated several convictions involving officers later convicted of crimes or known to have committed misconduct and falsified criminal charges against innocent people. Plaintiff's arresting officer was one of these officers. Thus, the Kings County District Attorney's Office vacated the Plaintiff's conviction on or about September 7, 2022, and all charges made against him were dismissed and sealed in their entirety.

40. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

41. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain mental and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

42. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

43. Defendants owed a duty of care to Plaintiff.

44. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, seizing and tightly handcuffing him.

45. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

46. All of the foregoing occurred without any fault or provocation by Plaintiff.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

49. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION
Unlawful Stop, Question, and Search

50. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

51. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

52. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

53. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

56. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

57. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

58. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION**False Imprisonment**

59. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

60. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

61. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION**Violation of Plaintiff's Fourth And Fourteenth Amendment Rights:
Excessive Force**

65. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

66. The use of excessive force by defendants by, amongst other things, seizing and tightly handcuffing the Plaintiff, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

68. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

69. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

70. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

71. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

75. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

76. The City of New York and its employees, servants, and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

77. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION**Failure to Intervene**

78. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

79. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

80. Defendants failed to intervene to prevent the unlawful conduct described herein.

81. As a result of the foregoing, Plaintiff suffered permanent injury, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

82. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION**Violation of Fourth And Fourteenth Amendment Rights:****Denial of Right to Fair Trial/Due Process**

86. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

87. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

88. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

89. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

90. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

91. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

TENTH CAUSE OF ACTION
Malicious Prosecution

95. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

96. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

97. Defendants commenced and continued criminal proceedings against Plaintiff.

98. There was actual malice and an absence of probable cause for the criminal proceedings against Plaintiff and for each of the charges for which he was prosecuted.

99. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION**Violation of Article I, § 12 of the New York State Constitution**

100. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

101. Such conduct breached the protections guaranteed to Plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention Plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

102. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered mental, economic, and emotional injuries, as well as a deprivation of liberty.

103. As a result of the above tortious conduct, Plaintiff was caused to suffer mental, economic, and emotional injuries, as well as a deprivation of liberty.

104. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

126. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff AHMED MOBARAK demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*

Dated: New York, New York
June 22, 2023

By: *Cary London*
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
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New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE SAMANTHA STURMAN, Shield No. 3035, 84th Precinct; 301
Gold Street, Brooklyn, NY 11201

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York

June 22, 2023

Cary London
CARY LONDON, ESQ.